

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chart Riggall	Team: Squad #04	CCRB Case #: 201806671	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/04/2018 6:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/4/2019	Precinct: 88		
Date/Time CV Reported Mon, 08/06/2018 3:55 PM	CV Reported At: IAB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 08/14/2018 11:28 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Graham Brathwaite	01682	943020	088 PCT
2. POM Richard Light	12410	936957	088 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Bradley Arcos	14936	960170	088 PCT
2. POM Keith Schroeder	16104	964283	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Graham Brathwaite	Abuse: Sergeant Graham Brathwaite forcibly removed § 87(2)(b) to the hospital.	A . Substantiated
B . POM Richard Light	Abuse: Police Officer Richard Light refused to provide his name and shield number to § 87(2)(b)	B . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On August 6, 2018, § 87(2)(b) filed this complaint with IAB by mail.

On May 4, 2018, at approximately 6 PM, at § 87(2)(b) in Brooklyn, Sgt. Graham Brathwaite—at the time of the incident, of the 88th Precinct—removed § 87(2)(b) to § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). PO Richard Light, also of the 88th Precinct, refused to provide his name and shield number to § 87(2)(b) (**Allegation B: Abuse of Authority, substantiated**). § 87(4-b), § 87(2)(g)

No arrests or summonses resulted from this incident. Body-worn camera footage of the incident was obtained and is discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Graham Brathwaite forcibly removed § 87(2)(b) to the hospital.

It is undisputed that at approximately 5:45 PM on May 4, 2018, § 87(2)(b) attempted to enter his residence at § 87(2)(b)

§ 87(2)(b) was in the process of bringing a trash bag full of clothing, which he had retrieved from a storage unit, in to his apartment, when he was stopped by the staff of § 87(2)(b) due to an ongoing problem with bedbugs in § 87(2)(b) apartment. Both § 87(2)(b) and § 87(2)(b) one of the program directors of § 87(2)(b) called 911. Sgt. Graham Brathwaite, PO Keith Schroeder, PO Richard Light, and PO Bradley Arcos—at the time, all of the 88th Precinct—responded to the location. § 87(2)(b) was removed to § 87(2)(b).

§ 87(2)(b) (BR 01) said that he has had a series of ongoing disputes with § 87(2)(b) regarding abuses and violations of the rights of its tenants § 87(2)(b)

As § 87(2)(b) tried to enter his residence on May 4, he was stopped by a § 87(2)(b) security guard named § 87(2)(b). § 87(2)(b) was carrying a large, dark-green trash bag containing his spring/summer clothing. After being initially stopped by § 87(2)(b), § 87(2)(b) was confronted by § 87(2)(b) who told him that due to ongoing pest extermination efforts in the building, he could not bring the clothes inside. § 87(2)(b) disputed this point and called 911 to report a civil dispute.

Shortly thereafter, Sgt. Brathwaite and PO Schroeder arrived at § 87(2)(b). The officers spoke with both § 87(2)(b) and § 87(2)(b) and § 87(2)(b) saw § 87(2)(b) display to the officers what he believed was a Mental Hygiene Warrant filed against him. The officers then informed § 87(2)(b) that he was going to be taken in for psychiatric evaluation, though they did not state why. PO Schroeder handcuffed § 87(2)(b). § 87(2)(b) did not offer any resistance. Approximately twelve minutes later, and FDNY ambulance arrived, and § 87(2)(b) was placed inside. He was transported to § 87(2)(b) without incident and held there for seven days.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) § 87(2)(g)

§ 87(2)(b) detailed the history of disputes between § 87(2)(b)

and § 87(2)(b) § 87(2)(b) has sued § 87(2)(b) several times § 87(2)(b) § 87(2)(b) is also known as § 87(2)(b) filling his room and two off-site storage units with garbage. § 87(2)(b) has called the police approximately six to seven times for incidents involving § 87(2)(b) § 87(2)(b) however, does not have any medical custody over § 87(2)(b) Beginning in early 2018, § 87(2)(b) began to develop a bedbug infestation, which was eventually isolated to § 87(2)(b) apartment. After § 87(2)(b) refused to grant § 87(2)(b) access to his apartment so that the infestation could be treated, § 87(2)(b) petitioned for a Mental Hygiene Warrant against § 87(2)(b) § 87(2)(b) A warrant was successfully obtained on April 17, 2018, and was required to be served within thirty days.

During the incident itself, § 87(2)(b) believed that § 87(2)(b) was intoxicated, as he was slurring his words, staggering, repeating himself, and had a smell of alcohol on his breath. She added that she displayed § 87(2)(b) “phase sheet,” which lists his diagnoses and medications, to the officers. Additionally, it was § 87(2)(b) of § 87(2)(b) who displayed the mental hygiene warrant to the officers.

The investigation obtained a copy of the warrant from the Kings County Mental Hygiene Court (BR 05). § 87(2)(b)

The warrant mandates that § 87(2)(b) be brought “forthwith before IAS 77 of this court,” was signed by the § 87(2)(b) The warrant notes, “THIS WARRANT MAY BE EXECUTED ONLY BETWEEN THE HOURS OF 8:00 A.M. AND 2:00 P.M. ON THOSE DAYS WHEN COURT IS IN SESSION.”

Sgt. Brathwaite (BR 06) claimed to have no independent recollection of this incident, despite being shown video evidence during his interview.

PO Light (BR 07) said that when he arrived, § 87(2)(b) was already in handcuffs, an ambulance was en route, and to his understanding, Sgt. Brathwaite had already made the decision to remove § 87(2)(b) to the hospital. He described § 87(2)(b) demeanor during the incident as calm, but said that § 87(2)(b) repeatedly requested a receipt for his clothing. He did not observe any signs that § 87(2)(b) was intoxicated. PO Light did not recall seeing the Mental Hygiene Warrant for § 87(2)(b)

The EVENT information (BR 08) from § 87(2)(b) 911 call indicates that she informed the operator of the existence of the Mental Hygiene Warrant. She noted that § 87(2)(b) was not violent and that there were no weapons or injuries involved. At 5:51 PM, the EVENT notes that the “AIDED IS OUT OF CONTROL.”

Body-worn camera footage from a camera worn by PO Schroeder (BR 09), Sgt. Brathwaite’s partner during the incident, captures the portion of the incident for which Sgt. Brathwaite is present. Sgt. Brathwaite speaks with § 87(2)(b) from the 01:00 to the 01:25 mark, at which point he leaves with § 87(2)(b) and speaks with her off-camera. This conversation is not captured in any footage of the incident. At the 05:24 mark, Sgt. Brathwaite returns, and can be heard speaking, though he is off camera. He says, “Here’s what’s gonna happen today, sir. You have a mental hygiene warrant, okay? Do you know what that is?” § 87(2)(b) replies, “Yes.” Sgt. Brathwaite says, “So, today we’re gonna take you to § 87(2)(b) to get seen, alright?” PO Schroeder handcuffs § 87(2)(b) PO Light and PO Arcos arrive at the 07:10 mark. Sgt. Brathwaite says to them, “Mental hygiene warrant, he’s gonna go to § 87(2)(b) PO Light says, “That’s not a mental—mental hygiene warrants go to court. They say that every time they call us.

They don't know what a mental hygiene warrant is." Throughout the entirety of PO Schroeder and PO Light's (BR 10) footage of the incident, § 87(2)(b) does not behave violently or aggressively towards any officers or civilians, or make any remarks indicating that he might do so.

Patrol Guide Procedure 221-13, "Mentally Ill or Emotionally Disturbed Persons" (BR 11), states that officers "must [take] into protective custody" a mentally ill or emotionally disturbed person, when said person "is conducting himself in a manner likely to result in a serious injury to himself or others."

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: Police Officer Richard Light refused to provide his name and shield number to § 87(2)(b)

It is undisputed that as PO Light escorted § 87(2)(b) to an FDNY ambulance in front of § 87(2)(b), § 87(2)(b) asked PO Light for the names and shield numbers of the officers on-scene, including that of PO Light. PO Light did not verbally provide his name and shield number to § 87(2)(b).

§ 87(2)(b) did not mention asking any officers for their names or shield numbers during his sworn statement. However, during his initial written complaint (BR 12), § 87(2)(b) stated that he "repeatedly requested documentation of NYPD documentation [sic]: incident report, badge numbers of the officers at the site, etc. Such requests were denied."

Body-worn camera footage from PO Light's camera is embedded below. At the 0:04 mark, § 87(2)(b) requests the officers' names and shield numbers by saying, "Can I get identities of all the officers involved? Badge numbers, names?" PO Light says, "Right here," and his right thumb briefly comes in to view as he points to his shield. § 87(2)(b) says, "Sir, can I get it documented?" PO Light says, "No, you can document it. I'm not documenting it for you." § 87(2)(b) says, "How am I going to document it?" and PO Light responds, "Remember it."



PO Light Allegation B.mp4

Patrol Guide Procedure 203-09 states that members of service shall “courteously and clearly state [their] rank, name, shield number, and command, or otherwise provide them, to anyone who requests [them] to do so” (BR 13).

§ 87(4-b), § 87(2)(g)

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- Sergeant Graham Brathwaite has been a member of service for eleven years and has been a subject in six prior complaints with ten allegations, two of which were substantiated.
 - In 201311857, allegations of a retaliatory summons and a discourtesy were substantiated. § 87(2)(g)
- Police Officer Richard Light has been a member of service for thirteen years and has been a subject in two prior complaints with four allegations, one of which was substantiated.
 - In 201703477, an allegation of a discourteous action was substantiated. § 87(2)(g)

- This case was not suitable for mediation.

- On November 7, 2018, a FOIL request with the New York City Comptroller's office returned negative results for a notice of claim (BR 19).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date